

24NWCV01458 24NWCV01458

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-04

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Case Number: 24NWCV01458 Hearing Date: September 4, 2026 Dept: P

ROBERT GARCIA, ET AL. v. THE VAULT COCKTAILS, ET AL.

CASE NO.: 24NWCV01458

HEARING: 09/04/2026 @ 9:30 AM

#11

TENTATIVE ORDER

I.

Counsel Wade C. Johnson and Johnson

Oakleaf APC's motion to be relieved as counsel for Defendant Danny Stojakovic is
GRANTED.

II.

Counsel Wade C. Johnson and Johnson

Oakleaf APC's motion to be relieved as counsel for Defendant Vault Cocktail
Bar, LLC is GRANTED.

These Orders will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.

Moving party to give notice.

Counsel Wade C. Johnson and Johnson Oakleaf APC (Counsel)

moves to be relieved as counsel for Defendants Danny Stojakovic and Vault
Cocktail Bar, LLC (Defendants).

Background

On May 9, 2024, Plaintiffs Robert Garcia and Daniel Enriquez (Plaintiffs) filed this personal injury action against Vault Cocktail Bar, LLC, erroneously sued as The Vault Cocktails; Danny Stojakovic; Infiniti Acquisition Group, Inc.; and Does 1 to 20. The form complaint alleges that on May 6, 2023, at Vault Cocktails, 15853 Imperial Hwy., La Mirada, CA 90638 (Subject Premises), security personnel initiated a verbal and physical altercation against Plaintiffs, their spouses, and their friends resulting in injuries. The complaint asserts two causes of action: (1) premises liability and (2) general negligence.

On September 30, 2025, the Court granted Defendants' motion to set aside the defaults entered against them.

Legal Standard

"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: ¶ 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; ¶ 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

California Rules of Court, rule 3.1362 requires that the following be submitted in support of an attorney's motion to be relieved as counsel pursuant Code of Civil

Procedure section 284, subd. (2): (1) a notice of motion and motion directed to the client (Form MC-051); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subd. (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subd. (1) (Form MC-052); (3) a proof of service evidencing service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Form MC-053). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (d), (e).)

Discussion

Counsel moves to be relieved as counsel for Defendants.

Here, in compliance with California Rules of Court, rule 3.1362, Counsel submits notices of motion and motions on Form MC-051 directed to Defendants. Counsel also submits declarations on Form MC-052 demonstrating good cause to be relieved as counsel for Defendants. Specifically, Counsel states Defendants have ceased their attorney-client relationship under the terms of their engagement agreement but have not responded to requests to obtain their consent. Counsel provides proposed orders on Form MC-053 and proofs of service of each document to the parties in this action. Therefore, the Court finds that Counsel has fully complied with the requirements under California Rules of Court, rule 3.1362.

Accordingly, Counsel's motions to be relieved as counsel for Defendants are GRANTED. These Orders will take effect upon the filing of proof of service of the signed order upon the client and on all parties that have appeared in the case.